

HEADNOTE

- “-1) Starting point of the time limit under R. 197.3 RoP: the "execution of the measures" includes the service by the bailiff of the "procès-verbal de saisie" at the end of the operations, which is the procedural act that closes the seizure operations and informs the defendant of the content of the notice so it can request a review.*
- 2) At this stage of proceedings, there is no reason for the Court to examine further the validity of the patent in question.*
- 3) It is a matter of preserving evidence at an early stage of the proceedings. The Court rightly considered that the applicant had provided sufficient available reasonable evidence of the alleged infringement.*
- 4) The request for preserving evidence and the request for inspection are two different and distinct procedures, each with a different purpose. There is no need to combine the two measures, even though the first obviously requires the right to enter a private place.*
- 5) Within the legal framework of the UPC, a saisie carried out by "an expert assisted by a bailiff" is not contrary to the French Law and is in conformity with R. 196.5 of the RoP.”*

COURT
Local Division in Paris

PROCEEDINGS
Procedural order

PATENT
EP2265793

Subsea test apparatus, assembly and method

KEYWORDS

Provisional measures

Evidence preservation

Seizure

Patent validity

Seizure procedures

Rule 197 Order to preserve evidence without hearing the defendant

SUMMARY

The Local Division in Paris issued a procedural order. The patent at issue relates to a subsea test apparatus, assembly and method. According to the headnotes of the decision, the time limit for executing evidence preservation measures begins when the bailiff serves the official seizure report that concludes the operations and notifies the defendant of its contents so it can seek review. At this early stage of proceedings, the Court found no basis to examine the patent's validity in depth. The Court determined that the applicant had submitted sufficient reasonable evidence of the alleged infringement to justify preserving evidence at an early procedural stage. Evidence preservation and inspection are separate procedures with distinct purposes, and there is no requirement to combine them despite the former necessarily requiring access to private premises. Under UPC rules, a seizure conducted by an expert with a bailiff's assistance complies with French law and conforms to the Rules of Procedure.